

CV-25-008681 CEDARBROOK HOMEOWNERS ASSOCIATION vs WALZ, MONTE RICHARD – Plaintiff’s Application for Order to Show Cause Re: Contempt – GRANTED in part, DENIED in part, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: On July 31, 2026, Plaintiff filed an application for order to show cause why Defendant should not be held in contempt of the Court’s March 19, 2026 Default Judgment (“Default Judgment”). There is no opposition on file. The Default Judgment ordered Defendant to provide Plaintiff reasonable access to Defendant’s condominium unit for the purpose of inspecting, restoring, and completing all necessary repairs to the fire alarm system. Defendant was ordered to coordinate with Plaintiff to provide access dates and times within five calendar days. Defendant has not done so. Plaintiff served the Default Judgment on Defendant by mail on March 19, 2026. On July 22, 2026, Plaintiff mailed a letter to Defendant requesting that Defendant make the unit available on certain days. Plaintiff also contacted Defendant via email. Defendant did not respond or otherwise comply with the Court’s order. Accordingly, the application is GRANTED in part. The Court finds sufficient grounds to institute contempt proceedings and SETS for October 27, 2026 at 8:30 am in Department 22 an Order to Show Cause directing Monte Richard Walz to appear and show cause, if any exists, why he should not be adjudged in contempt for violation of the Court’s order to provide Plaintiff reasonable access to the condominium unit. (See Crawford v. Workers’ Comp. Appeals Bd. (1989) 213 Cal.App.3d 156, 159, reh’g denied and opinion modified (July 12, 1989).) The application is DENIED in part as to the attorneys’ fees award. Civil money judgments are enforceable through a writ of execution, not contempt. (Code Civ. Proc., § 699.510.) The Court expresses no opinion regarding whether contempt ultimately will be established. The ruling is limited to whether Plaintiff has shown sufficient grounds for issuance of an OSC. Plaintiff must file a proof of service at least five court days before the OSC date showing personal service of the signed order on the alleged contemnor no later than 16 court days before the hearing date. Defendant may file and serve a written opposition to the Order to Show Cause no later than nine court days before the OSC date. If an opposition is filed, Plaintiff may file and serve a reply brief no later than five court days before the OSC date. Plaintiff is directed to submit a new proposed order within five court days that is consistent with this ruling. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

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CV-25-008681 – CEDARBROOK HOMEOWNERS ASSOCIATION vs WALZ, MONTE RICHARD – Plaintiff’s Application for Order to Show Cause Re: Contempt – GRANTED in part, DENIED in part, and unopposed.

On July 31, 2026, Plaintiff filed an application for order to show cause why Defendant should not be held in contempt of the Court’s March 19, 2026 Default Judgment (“Default Judgment”). There is no opposition on file.

The Default Judgment ordered Defendant to provide Plaintiff reasonable access to Defendant’s condominium unit for the purpose of inspecting, restoring, and completing all necessary repairs to the fire alarm system. Defendant was ordered to coordinate with Plaintiff to provide access dates and times within five calendar days. Defendant has not done so.

Plaintiff served the Default Judgment on Defendant by mail on March 19, 2026. On July 22, 2026, Plaintiff mailed a letter to Defendant requesting that Defendant make the unit available on certain days. Plaintiff also contacted Defendant via email. Defendant did not respond or otherwise comply with the Court’s order.

Accordingly, the application is GRANTED in part. The Court finds sufficient grounds to institute contempt proceedings and SETS for October 27, 2026 at 8:30 am in Department 22 an Order to Show Cause directing Monte Richard Walz to appear and show cause, if any exists, why he should not be adjudged in contempt for violation of the Court’s order to provide Plaintiff reasonable access to the condominium unit. (See Crawford v. Workers’ Comp. Appeals Bd. (1989) 213 Cal.App.3d 156, 159, reh’g denied and opinion modified (July 12, 1989).)

The application is DENIED in part as to the attorneys' fees award. Civil money judgments are enforceable through a writ of execution, not contempt. (Code Civ. Proc., § 699.510.)

The Court expresses no opinion regarding whether contempt ultimately will be established. The ruling is limited to whether Plaintiff has shown sufficient grounds for issuance of an OSC.

Plaintiff must file a proof of service at least five court days before the OSC date showing personal service of the signed order on the alleged contemnor no later than 16 court days before the hearing date. Defendant may file and serve a written opposition to the Order to Show Cause no later than nine court days before the OSC date. If an opposition is filed, Plaintiff may file and serve a reply brief no later than five court days before the OSC date. Plaintiff is directed to submit a new proposed order within five court days that is consistent with this ruling.

The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23: